

all liability in respect of her *breaches of trust committed during the coverture, unless he has acted or intermeddled in the trust; but the relief afforded to the husband by the Act has, by taking away from the *cestuis que trust* the security of the husband's liability, made the appointment of a married woman to be a trustee, at least as impolitic as it was before the Act.]

Her inability to pass the legal estate.— But further the appointment of a *feme covert* [was, prior to the recent Act,] attended with inconvenience from her inability (except with the concurrence of her husband and through expensive forms) to join in the requisite assurances. At common law, if land be vested in a *feme covert* upon *condition* to enfeof another, she may execute the feoffment by her own act, without the intervention of her husband (*a*); and hence it has been argued, that, in the case of a trust, she may, equally without her husband's concurrence, convey the estate to the parties *equitably* entitled (*b*). But between the two cases there is this clear and obvious distinction, that a *condition* is part and parcel of the common law, while a *trust* is only recognized in the *forum* of a court of equity; except, therefore, the trust be so worded as to bear the construction of a legal condition, it seems impossible to contend that an instrument otherwise inoperative should, from the mere circumstance of the trust, which a court of law cannot notice, acquire a validity (*c*).

5. Feme covert a trustee for sale.— Should a *feme covert*, [married before the recent Act, be in respect of a trust created before the Act], a trustee for sale, it would seem, if these views be correct, that she can *exercise the discretion*, and with the aid of the Fines and Recoveries Act, which requires the concurrence of the husband, can pass the *estate*. But there remains the consideration to whom the purchase-money is to be paid, and who is to sign the receipt. If it

(*a*) *Daniel v. Ubley*, Sir W. Jones, 137.

(*b*) *Daniel v. Ubley*, Sir W. Jones, 138, *per* Whitlock, and Dodridge, J.

(*c*) See Mr. Hargrave's *Observa-*

tions, Co. Lit. 112, a, note (6); and Mr. Fonblanque's *Treat. on Equity*, vol. i. p. 92; *McNeillie v. Acton*, 2 Eq. Re. 25.